

Mohd. Nooruz Zaman v. Madhyanchal Vidyut Vitaran Nigam Ltd.

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 21 January 2025 · 2025:AHC-LKO:3718-DB · WRIT - C No. - 525 of 2025 · **Writ disposed of; indemnity application to be processed under clause 4.4.**

HEADNOTE

A tenant seeking a separate connection without landlord consent may submit an indemnity bond. Subject to inquiry into tenancy and possession, the licensee shall process the application for grant under clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005. The direction confers no right of possession or title.

FACTUAL SUMMARY

Mohd. Nooruz Zaman claimed to be a tenant in possession of Flat No. 9, Victoria Street, Hasnanin Market, Lucknow, and sought an independent electricity connection. Opposite party no. 5, the landlord, had not consented. The petitioner had sued the landlord for permanent injunction; no eviction suit was pending. He relied on Seema Manoor. Counsel for Madhyanchal Vidyut Vitaran Nigam Ltd. stated that, absent landlord consent, an indemnity bond could be given and the application processed under paragraph 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

Where landlord consent is not available, a person claiming to be a tenant in occupation who seeks a separate connection may submit an indemnity bond. Subject to inquiry into tenancy and possession, the licensee shall process that application for grant of a separate connection as per clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005, within four weeks. The order confers no right of possession or title and does not prejudice the landlord. ¶ 6-7

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A tenant seeking a separate connection without landlord consent may submit an indemnity bond. Subject to inquiry into tenancy and possession, the licensee shall process the application for grant under clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005.. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — POSSESSION OR TITLE IN THE PREMISES

The direction does not confer possession or title on the petitioner and does not prejudice opposite party no. 5 in pending or future proceedings. ¶ 7

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Manoor v. U.P. Power Corporation Ltd.</i> (2015) 1 All LJ 44			petitioner	Referred

